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|---------------------------------------------|----------------------------------------------------------------|
| <b>Meeting Name:</b>                        | Cabinet                                                        |
| <b>Date:</b>                                | 6 January 2026                                                 |
| <b>Report title:</b>                        | Local Development Scheme 2026–2029                             |
| <b>Cabinet Member:</b>                      | Councillor Helen Dennis, New Homes and Sustainable Development |
| <b>Ward(s) or groups affected:</b>          | All                                                            |
| <b>Classification:</b>                      | Open                                                           |
| <b>Reason for lateness (if applicable):</b> | N/a                                                            |

## **FOREWORD - COUNCILLOR HELEN DENNIS, CABINET MEMBER FOR NEW HOMES AND SUSTAINABLE DEVELOPMENT**

This update of our Local Development Scheme (LDS) highlights key workstreams for Southwark’s planning policy team over the coming years including our review of the CIL charging regime for speculative student accommodation, our review of Southwark’s ground-breaking Development Consultation Charter (DCC), and our work to bring the Old Kent Road Area Action Plan (AAP) to adoption in 2026.

The LDS also sets out our current timetable for review of the Southwark Plan, including early engagement across the borough, to ensure that land use in the borough is delivering on our key priorities including genuinely affordable housing, thriving high streets, community infrastructure and much-loved green spaces.

I continue to be immensely proud of our record and what we have achieved through strong planning policies, including the highest level of social rent completions in London last year, and the distribution of £20m in Neighbourhood CIL to our local communities. The LDS may require a further update next year in light of national legislation on planning reform, but the workplan outlined in this report gives everyone a good indication of our priorities and work to come.

## **RECOMMENDATION**

### **Recommendation for the Cabinet**

1. That Cabinet adopt the Local Development Scheme (“LDS”) in Appendix 1.
2. That Cabinet note the commencement of a full review of the Southwark Plan in 2026, following the adoption of the LDS.

### **Recommendations for the Leader of the Council**

3. Not applicable.

## **REASONS FOR RECOMMENDATIONS**

4. The LDS is a statutory document required under the Planning and Compulsory Purchase Act 2004 and the Town and Country Planning (Local Planning) (England) Regulations 2012.
5. The current LDS, published in September 2022, is now out of date. The new LDS covers the period from Q4 2025/ 2026 to Q4 2029/30. The timeframe reflects the requirement for a full review of the Southwark Plan, in line with the National Planning Policy Framework (NPPF) requirement for a five-yearly review.
6. The review of the Southwark Plan is also necessary due to policy changes in the National Planning Policy Framework (NPPF) which have increased the emphasis on housing delivery and viability issues which are affecting housing delivery across London.
7. The LDS ensures the council's planning framework remains up to date and responsive to legislative, demographic and economic changes.

## **ALTERNATIVE OPTIONS CONSIDERED AND NOT RECOMMENDED**

8. No alternative option has been considered. The updating and adoption of a Local Development Scheme is a statutory requirement.

## **POST DECISION IMPLEMENTATION**

9. The LDS will be published on the council's website. It will guide the preparation and review of the Southwark Plan and other planning policy documents. It provides transparency to the community and other stakeholders concerning the scheduling of key milestones, including when consultation on the draft plan will occur.
10. The review of the Southwark Plan will commence following adoption of the LDS, in accordance with the timetable set out in Appendix 1.

## **BACKGROUND INFORMATION**

11. The Local Development Scheme (LDS) is a statutory requirement, setting out the timetable for the preparation and review of planning policy documents. The overarching document which sets the development and spatial framework for the borough is the Southwark Plan.
12. Preparation for the Southwark Plan review has been triggered by several factors. These includes changes in national planning policy, the increased emphasis on housing delivery and viability issues which are affecting delivery. There is also a requirement for the Southwark Plan policies to align with the forthcoming London Plan, which is expected to be published in late 2027 and adopted in 2028.
13. The Southwark Plan review will incorporate the previously scheduled early

review of energy and carbon policies and town centres. Their inclusion as part of a comprehensive, full plan review will ensure that they are considered as part of a full plan viability assessment and refreshed spatial framework for the borough.

14. The adopted Town Centre action plans have already addressed part of the town centre review requirement. This will be supplemented by ongoing work on a borough wide characterisation study and separately commissioned studies to inform employment and retail land use and vision areas.

## **KEY ISSUES FOR CONSIDERATION**

### **Policy framework implications**

15. The LDS provides the timetable for the review and production of the Southwark Plan and other planning documents. This includes Development Plan Documents, including the Old Kent Road Area Action Plan.
16. The Southwark Plan is the council's statutory planning policy document, setting out the vision, strategy, policies and site allocations for the borough's future development. The Southwark Plan addresses the borough's needs and opportunities for housing, the economy, community facilities, transport, greening, the historic environment and infrastructure. It also supports the council's ambitions for climate action, design and a healthier, inclusive environment.
17. The LDS includes statutory stages for the Southwark Plan review. These are Regulation 18 consultation, Regulation 19 consultation, submission to the Secretary of State, Examination in Public and adoption. Evidence base studies are underway to support this process. Early consultation on key local plan issues will occur with the community and stakeholder groups during 2026. Adoption of the new Southwark Plan will follow the adoption of the new London Plan.
18. The LDS also sets out the remaining statutory stages for the Old Kent Road Area Action Plan (AAP), with Examination expected by Spring 2026. The significant work undertaken on the AAP's spatial framework and characterisation will be included in the new Southwark Plan.
19. The LDS shows the timeframe for the partial review and adoption of the Community Infrastructure Levy (CIL) Charging Schedule. The CIL rate for direct-let student accommodation is currently being consulted upon. Adoption is expected by Q3 2026/27.
20. The Statement of Community Involvement (SCI) and Development Consultation Charter (DCC) will be reviewed in 2027, in line with the statutory requirement for a 5-year review. The current SCI and DCC was adopted in October 2022, with a revised version with minor amendments adopted in June 2025.
21. The council will continue to support neighbourhood planning in Southwark. Neighbourhood plans provide the opportunity for communities to develop a

shared vision for their area and shape development.

22. The LDS confirms the council's commitment to publishing Authority Monitoring Reports (AMR) annually. These monitor the implementation of the Southwark Plan and other planning policy documents, track progress against strategic targets and provide transparency and accountability.
23. No additional Supplementary Planning Documents (SPDs) are proposed. Four SPD's have been adopted in 2025 (Affordable Housing, S106 and CIL, Householder Development and Climate & Environment). Updated or new SPDs will be scheduled following the Southwark Plan review.
24. By adopting the LDS, the council ensures that all planning policy documents are prepared in accordance with statutory requirements and are informed by meaningful public consultation at each stage. It ensures that the Southwark Plan is updated to a clear schedule, providing a framework for decision-making on planning applications and supporting the delivery of the council's wider corporate objectives.
25. It should be noted that secondary legislation arising from the Levelling-Up and Regeneration Act (LURA) (2023) concerning planning reform is expected to be published in early 2027. This will inform new legal requirements for plan-making, including methods of engagement, three Gateway reviews and a revised 30-month timeframe for plan-making.
26. This legislation will be carefully reviewed and a subsequent LDS update will be brought to Cabinet later in 2026 to meet the new requirements. In the meantime, the adoption of this LDS ensures that there is clarity over the proposed timeframe for the Southwark Plan review.

### **Southwark 2030**

27. The decision to agree the Local Development Scheme for adoption aligns with the [Southwark 2030 Strategy](#), which sets out a shared vision for a fair, green, and safe borough where everyone can live a good life as part of a strong community.
28. By adopting the Local Development Scheme, the council is helping to deliver on Southwark 2030's ambitions for the borough. The LDS, in setting out the timeframe for the Southwark plan review, supports the provision of decent homes and well-designed neighbourhoods, contributes to a safer and healthier Southwark and access to green spaces, and underpins a strong and fair local economy through sustainable growth and regeneration. It also advances opportunities for residents to stay well and thrive, ensuring that planning policies embed environmental sustainability and climate resilience.
29. Through a clear timetable and framework for the implementation and review of planning policies, the LDS plays a vital role in realising Southwark 2030's vision for a fair, green, and safe borough where everyone can live a good life as part of a strong, inclusive community.

## **Community, equalities (including socio-economic) and health impacts**

### **Community impact statement**

30. The LDS itself does not create new policies, but provides the framework and timetable for the preparation and review of planning documents that will deliver positive outcomes for all communities in Southwark.
31. The planning documents programmed in the LDS will have a positive impact on the achievement of the council's vision for the borough, set out in Southwark 2030 Strategy and the current Southwark Plan 2022. The LDS ensures that the council's planning framework remains responsive to changing needs and opportunities, and that the benefits of growth and development are shared across all communities.
32. The new Southwark Plan will be subject to an Integrated Impact Assessment. This will include a sustainability appraisal and health impact assessment which assesses social, economic, environmental and health impacts. An Equalities impact and needs assessment (EINA) will also be carried out to ensure that the needs of residents are considered and that the council's approach to equality, diversity and inclusion is embedded in the plan-making process.
33. The council is committed to meeting the requirements of the Statement of Community Involvement, ensuring meaningful public participation in the preparation of all planning documents. This includes publishing consultation plans and consultation reports, using a range of consultation and engagement methods which provide opportunities for residents, businesses and stakeholders to shape the future of the borough.

### **Equalities (including socio-economic) impact statement**

34. The Public Sector Equality Duty (PSED) contained in Section 149 (1) of the Equality Act 2010 ("the Act") imposes a duty on public authorities to have, in the exercise of their functions, due regard to three "needs" which are central to the aims of the Act.
  - a) The need to eliminate discrimination, harassment, victimisation and any other conduct prohibited by the Act
  - b) The need to advance equality of opportunity between persons sharing a relevant protected characteristic and persons who do not share it. This involves having due regard to the need to:
    - Remove or minimise disadvantages suffered by persons who share a relevant protected characteristic that are connected to that characteristic
    - Take steps to meet the needs of persons who share a relevant protected characteristic that are different from the needs of

persons who do not share it;

- Encourage persons who share a relevant protected characteristic to participate in public life or in any other activity in which participation by such persons is disproportionately low
  - c) The need to foster good relations between persons who share a relevant protected characteristic and those who do not share it. This involves having due regard, in particular, to the need to tackle prejudice and promote understanding.
35. The purpose of the LDS is to timetable the planning documents in the borough. The production of these documents will ensure that community and equalities impacts are taken into account. All Development Plan Documents are supported by an Equalities Impact Assessment.
36. The methods of consultation and engagement used as part of the production of the Southwark Plan will follow the approach set out in the Council's Statement of Community Involvement. Additional early engagement will be carried out, with emphasis on engaging hard to reach groups.
- Health impact statement**
37. By setting a clear timetable for the preparation of planning documents which set the framework for the borough's growth, the LDS will have an indirect neutral to positive impact on the health and wellbeing of Southwark's residents. The LDS supports the preparation of planning documents that include targeted measures to address environmental health concerns, such as managing overheating in homes, improving energy efficiency and air quality, and protecting and maintaining green infrastructure and open spaces.
38. These interventions support a healthier environment and which will contribute to both physical and mental wellbeing. In doing so, the LDS supports the Southwark 2030 Strategy's ambition to create a clean, green, and healthy borough, ensuring that residents can live well in safe and sustainable environments.

### **Climate change implications**

39. The Council has declared a Climate Emergency with an ambition to do all we can to make the borough carbon-neutral by 2030. This is supported by the Climate Change Strategy and Southwark's Climate Change Action Plan (2025) which will deliver the goals of the council's Southwark 2030 Strategy.
40. Planning applications are required to meet the policy requirements set out in the Local Plan. The LDS supports climate change mitigation, sustainability standards and environmental protection by ensuring that the review and preparation of planning documents, including the new Southwark Plan, are programmed and delivered in a timely manner.

## **Resource implications**

41. There are no additional resource implications arising from the Local Development Scheme. Staffing and any other resources related to the LDS are contained within existing departmental capacity.

## **Legal implications**

42. This report is being brought before the Cabinet under Part 3C of the Constitution. Paragraph 21 of the constitution states that the Cabinet has the power to adopt the Local Development Scheme.
43. Section 15 of the Planning and Compulsory Purchase Act 2004 requires a local authority to prepare and maintain a Local Development Scheme, identifying the documents to be prepared, their subject matter, and the timetable for their preparation and revision. The LDS is not subject to public consultation. Instead, it is presented to Cabinet for approval and, once agreed, will be published online in accordance with statutory requirements.
44. The Town and Country Planning (Local Planning) (England) Regulations 2012 require that the LDS is made publicly available after adoption. There is no requirement for independent examination or formal consultation on the LDS itself, although all development plan documents prepared under the LDS will be subject to statutory consultation and engagement as appropriate.

## **Financial implications**

45. There are no immediate financial implications arising from the Local Development Scheme. Staffing and any other costs connected to the LDS are to be contained within existing departmental revenue budgets.

## **SUPPLEMENTARY ADVICE FROM OTHER OFFICERS**

### **Assistant Chief Executive – Governance and Assurance (CM 20.11.2025)**

46. The Cabinet has authority to decide on the adoption of the proposed Local Development Scheme under Part 3C of the Constitution paragraph 20 of the Southwark constitution.
47. Southwark Council acting as the local planning authority must prepare and maintain a local development scheme as a requirement of s.15 of the Planning and Compulsory Purchase Act 2004. The Act specifies what content the scheme must have. The scheme must be revised at such times that the planning authority considers appropriate.
48. Cabinet will need to ensure that the public sector equality duty in section 149 Equality Act 2010 is considered i.e. to have due regard to the need to eliminate discrimination, advance equality of opportunity, and to foster good relations between people with protected characteristics and others. Reference is made to this in the “Community, equalities (including socio-economic) and health impacts” section above which Cabinet should take account of in its deliberation.

49. The Human Rights Act 1998 imposes a duty on the council as a public authority to apply the European Convention on Human Rights; as a result the Council must not act in a way which is incompatible with these rights.
50. Council Assembly on 14 July 2021 approved a change to the council's Constitution to confirm that all decisions made by the council will consider the climate and equality (including socio-economic disadvantage and health inequality) consequences of taking that decision. This has been considered above.

### **Strategic Director of Resources (FIN25 – 23)**

51. This report seeks Cabinet approval to formally adopt the Local Development Scheme as well as noting the commencement of a full review of the Southwark Plan in 2026 post adoption.
52. The strategic director of resources notes that there are no direct financial implications arising from this report.
53. Staffing and any other costs associated with this recommendation are to be contained within existing departmental revenue budgets.

### **BACKGROUND DOCUMENTS**

| <b>Background Papers</b>                                                                                                                                                                                                                                                                     | <b>Held At</b>                                             | <b>Contact</b>                                                                                               |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------|
| The Southwark Plan 2022                                                                                                                                                                                                                                                                      | Planning Policy<br>160 Tooley Street<br>London<br>SE1P 5LX | Planning Policy team<br><a href="mailto:planningpolicy@southwark.gov.uk">planningpolicy@southwark.gov.uk</a> |
| <b>Link:</b> <a href="https://www.southwark.gov.uk/planning-environment-and-building-control/planning/planning-policy-and-guidance/southwark-plan-2022">https://www.southwark.gov.uk/planning-environment-and-building-control/planning/planning-policy-and-guidance/southwark-plan-2022</a> |                                                            |                                                                                                              |

### **APPENDICES**

| <b>No.</b> | <b>Title</b>             |
|------------|--------------------------|
| Appendix 1 | Local Development Scheme |



## AUDIT TRAIL

|                                                                         |                                                                                             |                          |
|-------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|--------------------------|
| <b>Cabinet Member</b>                                                   | Councillor Helen Dennis, New Homes and Sustainable Development                              |                          |
| <b>Lead Officer</b>                                                     | Juliet Seymour, Assistant Director of Policy, Building Control and the Historic Environment |                          |
| <b>Report Author</b>                                                    | Charlotte Brooks-Lawrie, Head of Planning Policy and Monitoring Innovation                  |                          |
| <b>Version</b>                                                          | Final                                                                                       |                          |
| <b>Dated</b>                                                            | 8 December 2025                                                                             |                          |
| <b>Key Decision?</b>                                                    | Yes                                                                                         |                          |
| <b>CONSULTATION WITH OTHER OFFICERS / DIRECTORATES / CABINET MEMBER</b> |                                                                                             |                          |
| <b>Officer Title</b>                                                    | <b>Comments Sought</b>                                                                      | <b>Comments Included</b> |
| Assistant Chief Executive – Governance and Assurance                    | Yes                                                                                         | Yes                      |
| Strategic Director, Resources                                           | Yes                                                                                         | Yes                      |
| <b>Cabinet Member</b>                                                   | Yes                                                                                         | Yes                      |
| <b>Date final report sent to Constitutional Team</b>                    |                                                                                             | 10 December 2025         |

## Appendix 1 – Local Development Scheme

|                                                                                               | Q4<br>Jan-Mar<br>25/26 | Q1<br>Apr-Jun<br>26/27 | Q2<br>Jul-Sep<br>26/27 | Q3<br>Oct-Dec<br>26/27 | Q4<br>Jan-Mar<br>26/27 | Q1<br>Apr-Jun<br>27/28 | Q2<br>Jul-Sep<br>27/28 | Q3<br>Oct-Dec<br>27/28 | Q4<br>Jan-Mar<br>27/28 | Q1<br>Apr-Jun<br>28/29 | Q2<br>Jul-Sep<br>28/29 | Q3<br>Oct-Dec<br>28/29 | Q4<br>Jan-Mar<br>28/29 | Q1<br>Apr-Jun<br>29/30 | Q2<br>Jul-Sep<br>29/30 | Q3<br>Oct-Dec<br>29/30 | Q4<br>Jan - Mar<br>29/30 |
|-----------------------------------------------------------------------------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|------------------------|--------------------------|
| <b>Local Plan</b>                                                                             |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                          |
| New Southwark Plan                                                                            |                        |                        |                        | EE                     | EE                     |                        |                        | Reg18                  |                        |                        | Reg19                  |                        |                        | SfE                    | EiP                    | IR                     | A/P                      |
| <b>Area Action Plans (AAP)</b>                                                                |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                          |
| Old Kent Road AAP                                                                             | EiP                    | IR                     | A/P                    |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                          |
| <b>Other documents</b>                                                                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                          |
| Review of Statement of Community Involvement (SCI) and Development Consultation Charter (DCC) |                        |                        |                        |                        | PfC                    |                        | A/P                    |                        |                        |                        |                        |                        |                        |                        |                        |                        |                          |
| CIL Schedule: Examination of revised rate for Purpose Built Student Housing (PBSH)            | PfC                    | SfE                    | EiP                    | A/P                    |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                        |                          |
| Authority Monitoring Report (AMR)                                                             |                        | A/P                    |                        |                        |                        | A/P                    |                        |                        |                        | A/P                    |                        |                        |                        | A/P                    |                        |                        |                          |

### Key

|                                                        |       |
|--------------------------------------------------------|-------|
| Early engagement                                       | EE    |
| Publication for comment                                | PfC   |
| Consultation (Regulation 18)                           | Reg18 |
| Formal publication for representations (Regulation 19) | Reg19 |
| Submission for Examination                             | SfE   |
| Examination In Public (EiP)                            | EiP   |
| Inspector's Report                                     | IR    |
| Adoption/Publication                                   | A/P   |

### Scope of documents:

- **New Southwark Plan**; the council's statutory development plan document. It sets out the vision, strategy, planning policies and site allocations for the borough.
- **Old Kent Road AAP**; a development plan document (DPD) which forms part of the adopted local plan. It provides specific planning policy and design guidance for the Old Kent Road vision area and site allocations.